

State vs Sunil on 9 June, 2025

TC 1019/2025
STATE Vs. Sunil
(Civil Lines Traffic Circle)

IN THE COURT OF GOWRI REGHUNATH : JMFC-10
CENTRAL DISTRICT : TIS HAZARI COURT : DELHI

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1. Case No. of the case	:	1019/2025
2. The date of offence	:	02.02.2025
3. The name of the accused	:	Sunil s/o Sh. Dhani Ram
4. The offence complained	:	u/s 185 M.V. Act & Rule 115/190(2) of M. V. Act
5. The plea of the accused	:	Not guilty
6. Date of institution of the case	:	04.02.2025
7. Date of reserving the order	:	26.05.2025
8. The date of order	:	09.06.2025
9. The final order	:	Convicted

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JUDGMENT

1. Vide this judgment, this court shall dispose of the present traffic challan issued against the accused Sunil on 02.02.2025 under Section 185 of the Motor Vehicles Act, 1988 (hereinafter referred to as M.V. Act) and Rule 115 Central Motor Vehicle Rules (hereinafter referred to as CMVR)/ Section 190(2) M.V. Act.

2. In brief, the case of the prosecution is that on the aforesaid date at about 06:00 p.m. at Tis Hazari Red Light, within jurisdiction of traffic circle Civil Lines, the accused was found plying a motorcycle

bearing registration no. DL-5SCU-4847 without a pollution under control certificate (PUCC) and he was drunk driving having 330mg/100ml of alcohol. Upon issuance of challan for the aforesaid offences, the vehicle of the accused was impounded at the spot.

3. The challan was produced before this court on 04.02.2025, and the accused entered appearance on the same date. Cognizance was taken of the offences stated in the challan. As the said offences are bailable, the accused was admitted to bail on furnishing of bail bonds. As per Section 274 BNSS, notice was framed on the accused under Rule 115 CMVR/190(2) M.V. Act and 185 of M. V. Act to which the accused pleaded not guilty and claimed trial.

4. Since the accused chose to contest the challan, an application for release of the vehicle was filed. Vide order dated 07.02.2025, the said vehicle was released on superdari to the accused being the registered owner.

STATE Vs. Sunil (Civil Lines Traffic Circle) Prosecution evidence

5. In support of its case, the prosecution examined two witnesses, namely, ASI Sanjay Prakash (PW-1) and HC Nagender Yadav (PW-2).

6. In their examination-in-chief, both witnesses deposed along the lines of the case of the prosecution. They stated that on 02.02.2025 at around 5:40 PM, while performing duty at Tis Hazari traffic when they noticed a motorcycle bearing registration number DL5SCU4847, coming from the side of Barf Khana Chowk. As per PW-1, when they stopped the driver, PW-2 reported to him that the driver was reeking of alcohol. Thereafter, PW-1 directed his associate to bring an alcometer to examine the accused. In the meantime, PW-1 enquired about the driver, and he revealed his name as Sunil. Upon examining him with an alcometer, the result was found to be 330mg/100 ml. Further, on checking the documents of the vehicle, it was found that the PUCC of the vehicle had expired. Thereafter, the present challan was issued under Section 185, 115 CMVR/190(2) M.V. Act, and the same was exhibited as Ex. PW-1/A. The result of the breath analysis examination was exhibited as Ex. PW-1/B. PW-1 further impounded the vehicle as the accused was not in a condition to drive the same.

7. During cross examination PW-1 denied the suggestion that the alcometer reading was incorrect and someone else had blown into the alcometer and the said readings were presented in this challan. He further denied the suggestion that the accused was falsely implicated to meet the challan quota of the traffic police. He admitted that no photographs were taken at the time of the STATE Vs. Sunil (Civil Lines Traffic Circle) incident. He further denied the suggestion that he had not checked the documents of the vehicle properly.

8. During cross examination PW-2 admitted that he had not videographed the process of breath analysis, however he admitted that the location at which the bike was stopped is under coverage of CCTV camera. He further stated that he could not recall the number of drivers they checked on the date of the incident, but he admitted that the alcometer machine was used multiple times. He stated that a pipe was used to examine the drivers, and each pipe was disposed of after single use. He

further admitted that the alcometer used to issue the present challan was not seized by the challaning officer. He denied the suggestion that the accused was not drunk and that he was falsely implicated in the present matter.

Statement of accused

9. Vide order dated 16.04.2025 prosecution evidence was closed. Thereafter statement of the accused was recorded under Section 351 BNSS in which all incriminating evidence was put to him. The accused denied that he was drunk at the time of the incident. However, he admitted that he did not have a PUCC in respect of his vehicle. He further stated that he was never asked to blow into the alcometer, and he has no knowledge of how the readings of alcohol level were generated. He stated that on being asked about the documents relating to his vehicle, he showed all the documents to the traffic officials, except the pollution certificate. He also stated that he got a fresh pollution certificate made in respect of his vehicle after getting the vehicle released on superdari. He made a plea of defence stating that he had been STATE Vs. Sunil (Civil Lines Traffic Circle) falsely implicated in the present challan due to an altercation he got into with the traffic officials regarding the PUCC, which led to issuance of the present challan for drunk driving against him. He further stated that he did not wish to lead any defence evidence.

Final arguments

10. During final arguments, Ld. APP for State argued that the oral evidence of both prosecution witnesses along with the proof of challan and alcometer slip sufficiently establishes the case of the prosecution. Accordingly, it was submitted that the offence under Section 185 M. V. Act is proved beyond reasonable doubt. It was argued that the absence of videography of the process of breath analysis does not affect the credibility of the prosecution witnesses who have maintained a consistent version. Further it was argued that even in the absence of independent witnesses, or video of the incident, the result of the breath analysis is a clinching piece of evidence to bring home the guilt of the accused. It was also argued that the offence under Rule 115 CMVR/190(2) M.V. Act is proved by the admission of the accused in his statement under Section 351 BNSS. Therefore, it was prayed that the accused be convicted of both offences.

11. Per contra Ld. Counsel for accused submitted that the accused is being falsely implicated in the present challan. It was submitted that the accused got into an altercation with the traffic officials over pollution certificate that he was asked to produce. Thereafter, this challan was issued to falsely implicate the accused in order to harass him. It was argued that the alcometer readings were forged and the readings obtained from the breath STATE Vs. Sunil (Civil Lines Traffic Circle) analysis of a third person who was drunk, were incorporated into the present challan. It was argued that the absence of videography of the process of breath analysis further casts a shadow of doubt over the case of the prosecution and the credibility of the witnesses. Accordingly, it was prayed that the accused be acquitted.

12. This court has heard the submissions of both sides, and considered the judicial record.

Analysis of Evidence

13. It is a settled principle of criminal jurisprudence, that the accused is presumed to be innocent, and the burden of proving the guilt of the accused beyond reasonable doubt lies on the prosecution.

14. In order to establish the guilt of the accused qua the offence of drunk driving under Section 185 M.V. Act, prosecution must establish the existence of the following facts beyond reasonable doubt:

- i) The accused was driving or attempting to drive a motor vehicle
- ii) While driving/attempting to drive the motor vehicle, the accused had in his blood, alcohol exceeding 30 mg. per 100 ml blood
- iii) Such quantity of alcohol was detected in a test conducted by a breath analyser or any other laboratory test.

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15. From the testimony of PW-1, it emerges that when the accused was stopped, he was reeking of alcohol. This led PW-1 to call for an alcometer to conduct his examination. As per the evidence of both witnesses, upon examining the accused, the alcohol level was found to be 330 mg/100ml. Further the accused was correctly identified by both witnesses. Both witnesses have maintained consistency in their positions and have not been rebutted on this point despite extensive cross-examination.

16. The oral evidence of both witnesses is further substantiated by the result of the breath analysis Ex. PW-1/B, which is admissible as per Section 203(6) M.V. Act. Perusal of same reveals that the test was conducted on 02.02.2025 at 17:59 hrs at Tis Hazari red light. The time and location of conducting the test corroborates the version of events as stated by the witnesses. The said result proves that the accused was subjected to a test by a breath analyser which detected the presence of 330 mg alcohol per 100 ml blood, which is well over the limit of 30 mg alcohol per 100 ml blood as prescribed by Section 185 M.V. Act.

17. Coming to the defence of the accused, the mere fact that the pipe which was used to blow into the alcometer, or that the alcometer itself was not seized does not affect the evidentiary value of Ex. PW1/B as it is a complete record of the breath analysis examination in itself. Further, this court is not in agreement with the argument raised by Ld. Counsel for the accused that in the absence of video recording of the process of breath analysis, the result of the same is unreliable. The absence of videography of the process of breath analysis neither affects STATE Vs. Sunil (Civil Lines Traffic Circle) the evidentiary value of the oral evidence of the witnesses, nor does it reduce their credibility. This becomes clear from a bare perusal of relevant sub-sections of Section 203 M.V Act which are reproduced herein;

(1) A police officer in uniform or an officer of the Motor Vehicles Department, as may be authorised in this behalf by that Department, may require any person driving or attempting to drive a motor vehicle in a public place to provide one or more specimens of breath for breath test there or nearby, if such police officer or officer has any reasonable cause to suspect him of having committed an offence under section 185:

Provided that requirement for breath test shall be made (unless, it is made) as soon as reasonably practicable after the commission of such offence.

(6) The results of a breath test made in pursuance of the provisions of this section shall be admissible in evidence.

Explanation.--For the purposes of this section, "breath test", means a test for the purpose of obtaining an indication of the presence of alcohol in a person's blood carried out, on one or more specimens of breath provided by that person, by means of a device of a type approved by the Central Government, by notification in the Official Gazette, for the purpose of such a test.

18. Therefore, if the process of breath analysis is conducted as per Section 203, the same is admissible in evidence. There is no requirement in Section 203 M.V. Act or in any other provision of the M.V. Act mandating the process of breath analysis to be video graphed. Undoubtedly, if the said process is captured on video, the same would certainly strengthen the case of the prosecution. However, absence of videography cannot be said to destroy the case of the prosecution in itself, particularly where the oral STATE Vs. Sunil (Civil Lines Traffic Circle) testimony of the witnesses and result obtained by the breath analysis test fully corroborate each other.

19. In view of the clear and uncontroverted testimony of both witnesses, duly supported by the result of the breath analysis examination, this court finds that the prosecution has successfully proved that the accused was drunk driving his vehicle with alcohol level of 330 mg /100 ml blood.

20. Coming to the offence of driving without a PUCC, it would be appropriate to refer to the relevant legal provisions before proceeding to appreciate the evidence in this regard.

21. Rule 115 CMVR prescribes the standards of emissions in respect of various categories of vehicles. Relevant sub-rules are reproduced here;

(6) Each motor vehicle manufactured on and after the dates specified in sub-rules (2), (3), (4) or (5), shall be certified by the manufacturers to be conforming to the standards specified in the said sub-sections, and further certify that the components liable to effect the emission of gaseous pollutants are so designed, constructed and assembled as to enable the vehicle, in normal use, despite the vibration to which it may be subjected, to comply with the provisions of the said sub-rule.

(7) After the expiry of a period of one year from the date on which the motor vehicle was first registered, every such vehicle shall carry a valid 'Pollution under control' certificate issued by an

agency authorised for this purpose by the State Government. The validity of the certificate shall be for six months and the certificate shall always be carried in the vehicle and produced on demand by the officers referred to in sub-rule (1) of rule 116. (emphasis supplied) STATE Vs. Sunil (Civil Lines Traffic Circle)

22. Punishment with respect to not having a valid PUC is provided under Section 190 of the M.V. Act deals with use of vehicles in unsafe condition. Sub-section (2) of the same states as follows;

(2) Any person who drives or causes or allows to be driven, in any public place a motor vehicle, which violates the standards prescribed in relation to road safety, control of noise and air-pollution, shall be punishable for the first offence with imprisonment for a term which may extend to three months, or with fine which may extend to ten thousand rupees or with both and he shall be disqualified for holding licence for a period of three months and for any second or subsequent offence with imprisonment for a term which may extend to six months, or with fine which may extend to ten thousand rupees or with both.

23. Therefore, where a vehicle being driven in a public place does not have a valid PUC, the driver or owner of are liable to be punished as per the aforementioned provisions.

24. In the present case, as per the version of both prosecution witnesses, when they stopped the accused and asked him to show the documents relating to his vehicle, they discovered that the PUC in respect of his vehicle had expired. Further, the accused himself admitted the same during his examination under Section 351 BNSS. He also stated that the challan for drunk driving was issued because he got into an altercation with the traffic officials over his PUC. The accused also failed to produce a valid PUC in respect of his vehicle during the course of trial.

25. It is a settled position of law that an admission by the accused in his statement under Section 351 BNSS/313 CrPC is not sufficient to convict him, however the same can certainly be STATE Vs. Sunil (Civil Lines Traffic Circle) taken into consideration along with other evidence in support of his guilt. Here the oral evidence of prosecution witnesses also points in the direction of the guilt of the accused qua the offence under Rule 115 CMVR/190(2) M.V. Act.

26. Accordingly, this court finds that the prosecution has successfully proved beyond reasonable doubt that the accused was driving his vehicle without a PUC.

Conclusion

27. From the above-mentioned discussion, this court is of the view that the prosecution has successfully established the guilt of accused Sunil under Section 185 M.V. Act, and Rule 115 CMVR/190(2) M.V. Act beyond reasonable doubt. Accordingly, accused Sunil stands convicted for the offences under Section 185 M.V. Act & Rule 115/190(2) of M. V. Act.

Announced in open court today i.e. 09.06.2025.

GOWRI

REGHUNATH

REGHUNATH Date: 2025.06.09
16:19:17 +0530

(GOWRI REGHUNATH)
JMFC-10/Central/THC
09.06.2025

It is certified that this judgment contains 11 pages and each page bears my signatures. Digitally signed by GOWRI GOWRI REGHUNATH REGHUNATH Date:

2025.06.09 16:19:23 +0530 (GOWRI REGHUNATH) JMFC-10/Central/THC
09.06.2025